

Neither Plaintiff's motion nor the supporting declaration attach any of the forms of discovery referenced as Exhibit A nor Plaintiff's meet and confer letter referenced as Exhibit B. There is no proof that discovery was ever served on Defendant. The motion itself is vague and ambiguous referring generically to the statutory authority for interrogatories, requests for production and inspection demands. Only in the conclusion does moving party reference the type of discovery at issue: a first set of interrogatories and production demand as the nature of discovery that is at issue. But it is unclear whether the interrogatories were form or special.

Plaintiff is additionally reminded that it is not appropriate to combine multiple discovery motions into a single omnibus motion. Law and motion shall be separately stated and filed. (See Govt. Code § 70617(a)(4) (setting forth the required filing fee for each motion application, or any other paper or request requiring a hearing); see also Weil & Brown, Civil Procedure Before Trial, [8:1140.1] at 8F-60 (The Rutter Group 2011) ("Motions to compel compliance with separate discovery requests ordinarily should be filed separately."))

Additionally, Solano County Superior Court Local Rule 3.9(d) requires a moving party to include in its notice of motion an advisory concerning the court's tentative ruling system. This is missing from Plaintiff's notice of motion.

Finally, there is no proof that this motion was ever served on Defendant.

Emely Ontiveros Carmona vs. A&V Cajun, Inc., et al.
Case No. CU25-03833

Motion for Joinder and Motion to Compel Arbitration

TENTATIVE RULING:

The court, on its own motion continues the hearing to Friday, July 17, 2026 at 9:00 a.m. in Department 8.

DENISE MICHELLE YOUNG JOHNSON v. JORGE ENRIQUE LIZARRAGA GARCIA
Case No. CU25-04336

Motion to Compel Authorization for Release of Medicare Records

TENATIVE RULING:

The motion is DENIED WITHOUT PREJUDICE.

No provision of the Civil Discovery Act permits one party to compel the other to sign an authorization for the release of records. A court does not have the power to create additional methods of discovery beyond the six methods expressly authorized by the Civil Discovery Act. (*Haniff v. Superior Court* (2017) 9 Cal.App.5th 191, 199.)